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Border Patrol is monitoring US drivers and detaining those with 'suspicious' travel patterns

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Following the city's study session, residents demanded an end to the city's 24 automated license plate readers, citing privacy risks.

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The [U.S. Border Patrol](#) is monitoring millions of American drivers nationwide in a secretive program to identify and detain people whose travel patterns it deems suspicious, The Associated Press has found.

The predictive intelligence program has resulted in people being stopped, searched and in some cases arrested. A network of cameras scans and records vehicle license plate information, and an algorithm flags vehicles deemed suspicious based on where they

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Suddenly, drivers find themselves pulled over — often for reasons cited such as speeding, failure to signal, the wrong window tint or even a dangling air freshener blocking the view. They are then aggressively questioned and searched, with no inkling that the roads they drove put them on law enforcement's radar.

Once limited to policing the nation's boundaries, the Border Patrol has built a surveillance system stretching into the country's interior that can monitor ordinary Americans' daily actions and connections for anomalies instead of simply targeting wanted suspects. Started about a decade ago to fight illegal border-related activities and the trafficking of both drugs and people, it has expanded over the past five years.

The Border Patrol has recently grown even more powerful through collaborations with other agencies, drawing information from license plate readers nationwide run by the [Drug Enforcement Administration](#), private companies and, increasingly, local law enforcement programs funded through federal grants. Texas law enforcement agencies have asked Border Patrol to use facial recognition to identify drivers, documents show.

This active role beyond the borders is part of the quiet transformation of its parent agency, [U.S. Customs and Border Protection](#), into something more akin to a domestic intelligence operation. Under the Trump administration's heightened immigration enforcement efforts, CBP is now poised to get more than \$2.7 billion to build out border surveillance systems such as the license plate reader program by layering in artificial intelligence and other emerging technologies.

The result is a mass surveillance network with a particularly American focus: cars.

This investigation, the first to reveal details of how the program works on America's roads, is based on interviews with eight former government officials with direct knowledge of the program who spoke on the condition of anonymity because they weren't authorized to speak to the media, as well as dozens of federal, state and local officials, attorneys and privacy experts. The AP also reviewed thousands of pages of court and government documents, state grant and law enforcement data, and arrest reports.

The Border Patrol has for years hidden details of its license plate reader program, trying to keep any mention of the program out of court documents and police reports, former officials say, even going so far as to propose dropping charges rather than risk revealing any details about the placement and use of their covert license plate readers. Readers are often disguised along highways in traffic safety equipment like drums and barrels.

The Border Patrol has defined its own criteria for which drivers' behavior should be deemed suspicious or tied to drug or human trafficking, stopping people for anything from driving on backcountry roads, being in a rental car or making short trips to the border region. The agency's network of cameras now extends along the southern border in Texas, Arizona and California, and also monitors drivers traveling near the U.S.-Canada border.

And it reaches far into the interior, impacting residents of big metropolitan areas and people driving to and from large cities such as Chicago and Detroit, as well as from Los Angeles, San Antonio, and Houston to and from the Mexican border region. In one example, AP found the agency has placed at least four cameras in the greater Phoenix area over the years, one of which was more than 120 miles (193 kilometers) from the Mexican frontier, beyond the agency's usual jurisdiction of 100 miles (161 kilometers) from a land or sea border. The AP also identified several camera locations in metropolitan Detroit, as well as one placed near the Michigan-Indiana border to capture traffic headed towards Chicago or Gary, Indiana, or other nearby destinations.

Border Patrol's parent agency, U.S. Customs and Border Protection, said they use license plate readers to help identify threats and disrupt criminal networks and are "governed by a stringent, multi-layered policy framework, as well as federal law and constitutional protections, to ensure the technology is applied responsibly and for clearly defined security purposes."

"For national security reasons, we do not detail the specific operational applications," the agency said. While the U.S. Border Patrol primarily operates within 100 miles of the border, it is legally allowed "to operate anywhere in the United States," the agency added.

While collecting license plates from cars on public roads has generally been upheld by courts, some legal scholars see the growth of large digital surveillance networks such as Border Patrol's as raising constitutional questions. Courts have started to recognize that "large-scale surveillance technology that's capturing everyone and everywhere at every time" might be unconstitutional under the Fourth Amendment, which protects people from unreasonable searches, said Andrew Ferguson, a law professor at George Washington University.

Today, predictive surveillance is embedded into America's roadways. Mass surveillance techniques are also used in a range of other countries, from [authoritarian governments such as China](#) to, increasingly, democracies in the U.K. and Europe in the name of national security and public safety.

"They are collecting mass amounts of information about who people are, where they go, what they do, and who they know ... engaging in dragnet surveillance of Americans on the streets, on the highways, in their cities, in their communities," Nicole Ozer, the executive director of the Center for Constitutional Democracy at UC Law San Francisco, said in response to the AP's findings. "These surveillance systems do not make communities safer."

In February, Lorenzo Gutierrez Lugo, a driver for a small trucking company that specializes in transporting furniture, clothing and other belongings to families in Mexico, was driving south

to the border city of Brownsville, Texas, carrying packages from immigrant communities in South Carolina's low country.

Gutierrez Lugo was pulled over by a local police officer in Kingsville, a small Texas city near Corpus Christi that lies about 100 miles from the Mexican border. The officer, Richard Beltran, cited the truck's speed of 50 mph (80 kph) in a 45 mph (72 kph) zone as the reason for the stop.

But speeding was a pretext: Border Patrol had requested the stop and said the black Dodge pickup with a white trailer could contain contraband, according to police and court records. U.S. Route 77 passes through Kingsville, a route that state and federal authorities scrutinize for trafficking of drugs, money and people.

Gutierrez Lugo, who through a lawyer declined to comment, was interrogated about the route he drove, based on license plate reader data, per the police report and court records. He consented to a search of his car by Beltran and Border Patrol agents, who eventually arrived to assist.

They unearthed no contraband. But Beltran arrested Gutierrez Lugo on suspicion of money laundering and engaging in organized criminal activity because he was carrying thousands of dollars in cash — money his supervisor said came directly from customers in local Latino communities, who are accustomed to paying in cash. No criminal charges were ultimately brought against Gutierrez Lugo and an effort by prosecutors to seize the cash, vehicle and trailer as contraband was eventually dropped.

Luis Barrios owns the trucking company, Paquetería El Guero, that employed the driver. He told AP he hires people with work authorization in the United States and was taken aback by the treatment of his employee and his trailer.

"We did everything right and had nothing to hide, and that was ultimately what they found," said Barrios, who estimates he spent \$20,000 in legal fees to clear his driver's name and get the trailer out of impound.

Border Patrol agents and local police have many names for these kinds of stops: “whisper,” “intel” or “wall” stops. Those stops are meant to conceal — or wall off — that the true reason for the stop is a tip from federal agents sitting miles away, watching data feeds showing who’s traveling on America’s roads and predicting who is “suspicious,” according to documents and people interviewed by the AP.

In 2022, a man from Houston had his car searched from top to bottom by Texas sheriff’s deputies outside San Antonio after they got a similar tipoff from Border Patrol agents about the driver, Alek Schott.

Federal agents observed that Schott had made an overnight trip from Houston to Carrizo Springs, Texas, and back, court records show. They knew he stayed overnight in a hotel about 80 miles (129 kilometers) from the U.S.-Mexico border. They knew that in the morning Schott met a female colleague there before they drove together to a business meeting.

At Border Patrol’s request, Schott was pulled over by Bexar County sheriff’s deputies. The deputies held Schott by the side of the road for more than an hour, searched his car and found nothing.

“The beautiful thing about the Texas Traffic Code is there’s thousands of things you can stop a vehicle for,” said Joel Babb, the sheriff’s deputy who stopped Schott’s car, in a deposition in a lawsuit Schott filed alleging violations of his constitutional rights.

According to testimony and documents released as part of Schott’s lawsuit, Babb was on a group chat with federal agents called Northwest Highway. Babb deleted the WhatsApp chat off his phone but Schott’s lawyers were able to recover some of the text messages.

Through a public records act request, the AP also obtained more than 70 pages of the Northwest Highway group chats from June and July of this year from a Texas county that had at least one sheriff’s deputy active in the chat. The AP was able to associate numerous phone numbers in both sets of documents with Border Patrol agents and Texas law enforcement officials.

The chat logs show Border Patrol agents and Texas sheriffs deputies trading tips about vehicles’ travel patterns — based on suspicions about little more than someone taking a quick trip to the border region and back. The chats show how thoroughly Texas highways are surveilled by this federal-local partnership and how much detailed information is informally shared.

In one exchange a law enforcement official included a photo of someone’s driver’s license and told the group the person, who they identified using an abbreviation for someone in the country illegally, was headed westbound. “Need BP?,” responded a group member whose

number was labeled "bp Intel." "Yes sir," the official answered, and a Border Patrol agent was en route.

Border Patrol agents and local law enforcement shared information about U.S. citizens' social media profiles and home addresses with each other after stopping them on the road. Chats show Border Patrol was also able to determine whether vehicles were rentals and whether drivers worked for rideshare services.

In Schott's case, Babb testified that federal agents "actually watch travel patterns on the highway" through license plate scans and other surveillance technologies. He added: "I just know that they have a lot of toys over there on the federal side."

After finding nothing in Schott's car, Babb said "nine times out of 10, this is what happens," a phrase Schott's lawyers claimed in court filings shows the sheriff's department finds nothing suspicious in most of its searches. Babb did not respond to multiple requests for comment from AP.

The Bexar County sheriff's office declined to comment due to pending litigation and referred all questions about the Schott case to the county's district attorney. The district attorney did not respond to a request for comment.

The case is pending in federal court in Texas. Schott said in an interview with the AP: "I didn't know it was illegal to drive in Texas."

Today, the deserts, forests and mountains of the nation's land borders are dotted with checkpoints and increasingly, surveillance towers, Predator drones, thermal cameras and license plate readers, both covert and overt.

Border Patrol's parent agency got authorization to run a domestic license plate reader program in 2017, according to a [Department of Homeland Security](#) policy document. At the time, the agency said that it might use hidden license plate readers "for a set period of time while CBP is conducting an investigation of an area of interest or smuggling route. Once the investigation is complete, or the illicit activity has stopped in that area, the covert cameras are removed," the document states.

But that's not how the program has operated in practice, according to interviews, police reports and court documents. License plate readers have become a major — and in some places permanent — fixture of the border region.

In a budget request to Congress in fiscal year 2024, CBP said that its Conveyance Monitoring and Predictive Recognition System, or CMPRS, "collects license plate images and matches the processed images against established hot lists to assist ... in identifying travel patterns indicative of illegal border related activities." Several new developer jobs have been posted seeking applicants to help modernize its license plate surveillance system in recent months. Numerous Border Patrol sectors now have special intelligence units that can analyze license plate reader data, and tie commercial license plate readers to its national network, according to documents and interviews.

Border Patrol worked with other law enforcement agencies in Southern California about a decade ago to develop pattern recognition, said a former CBP official who spoke on the condition of anonymity for fear of reprisal. Over time, the agency learned to develop what it calls "patterns of life" of vehicle movements by sifting through the license plate data and determining "abnormal" routes, evaluating if drivers were purposely avoiding official checkpoints. Some cameras can take photos of a vehicle's plates as well as its driver's face, the official said.

Another former Border Patrol official compared it to a more technologically sophisticated version of what agents used to do in the field — develop hunches based on experience about which vehicles or routes smugglers might use, find a legal basis for the stop like speeding and pull drivers over for questioning.

The cameras take pictures of vehicle license plates. Then, the photos are “read” by the system, which automatically detects and distills the images into numbers and letters, tied to a geographic location, former CBP officials said. The AP could not determine how precisely the system’s algorithm defines a quick turnaround or an odd route. Over time, the agency has amassed databases replete with images of license plates, and the system’s algorithm can flag an unusual “pattern of life” for human inspection.

The Border Patrol also has access to a nationwide network of plate readers run by the Drug Enforcement Administration, documents show, and was authorized in 2020 to access license plate reader systems sold by private companies. In documents obtained by the AP, a Border Patrol official boasted about being able to see that a vehicle that had traveled to “Dallas, Little Rock, Arkansas and Atlanta” before ending up south of San Antonio.

Documents show that Border Patrol or CBP has in the past had access to data from at least three private sector vendors: Rekor, Vigilant Solutions and Flock Safety.

Through Flock alone, Border Patrol for a time had access to at least 1,600 license plate readers across 22 states, and some counties have reported looking up license plates on behalf of CBP even in states like California and Illinois that ban sharing data with federal immigration authorities, according to an AP analysis of police disclosures. A Flock spokesperson told AP the company “for now” had [paused its pilot programs](#) with CBP and a separate DHS agency, Homeland Security Investigations, and declined to discuss the type or volume of data shared with either federal agency, other than to say agencies could search for vehicles wanted in conjunction with a crime. No agencies currently list Border Patrol as receiving Flock data. Vigilant and Rekor did not respond to requests for comment.

Where Border Patrol places its cameras is a closely guarded secret. However, through public records requests, the AP obtained dozens of permits the agency filed with Arizona and Michigan for permission to place cameras on state-owned land. The permits show the agency frequently disguises its cameras by concealing them in traffic equipment like the yellow and orange barrels that dot American roadways, or by labeling them as jobsite equipment. An AP photographer in October visited the locations identified in more than two dozen permit applications in Arizona, finding that most of the Border Patrol’s hidden equipment remains in place today. Spokespeople for the Arizona and Michigan departments of transportation said they approve permits based on whether they follow state and federal rules and are not privy to details on how license plate readers are used.

Texas, California, and other border states did not provide documents in response to the AP’s public records requests.

CBP’s attorneys and personnel instructed local cities and counties in both Arizona and Texas to withhold records from the AP that might have revealed details about the program’s operations, even though they were requested under state open records laws, according to emails and legal briefs filed with state governments. For example, CBP claimed records requested by the AP in Texas “would permit private citizens to anticipate weaknesses in a police department, avoid detection, jeopardize officer safety, and generally undermine police efforts.” Michigan redacted the exact locations of Border Patrol equipment, but the AP was able to determine general locations from the name of the county.

One page of the group chats obtained by the AP shows that a participant enabled WhatsApp's disappearing messages feature to ensure communications were deleted automatically.

The Border Patrol's license plate reader program is just one part of a steady transformation of its parent agency, CBP, in the years since 9/11 into an intelligence operation whose reach extends far beyond borders, according to interviews with former officials.

CBP has quietly amassed access to far more information from ports of entry, airports and intelligence centers than other local, state and federal law enforcement agencies. And like a domestic spy agency, CBP has mostly hidden its role in the dissemination of intelligence on purely domestic travel through its use of whisper stops.

Border Patrol has also extended the reach of its license plate surveillance program by paying for local law enforcement to run plate readers on their behalf.

A federal grant program called Operation Stonegarden, which has existed in some form for nearly two decades, has handed out hundreds of millions of dollars to buy automated license plate readers, camera-equipped drones and other surveillance gear for local police and sheriffs agencies. Stonegarden grant funds also pay for local law enforcement overtime, which deputizes local officers to work on Border Patrol enforcement priorities. Under President Donald Trump, the Republican-led Congress this year allocated \$450 million for Stonegarden to be handed out over the next four fiscal years. In the previous four fiscal years, the program gave out \$342 million.

In Cochise County, Arizona, Sheriff Mark Dannels said Stonegarden grants, which have been used to buy plate readers and pay for overtime, have let his deputies merge their mission with Border Patrol's to prioritize border security.

"If we're sharing our authorities, we can put some consequences behind, or deterrence behind, 'Don't come here,'" he said.

In 2021, the Ward County, Texas, sheriff sought grant funding from DHS to buy a "covert, mobile, License Plate Reader" to pipe data to Border Patrol's Big Bend Sector Intelligence Unit. The sheriff's department did not respond to a request for comment.

Other documents AP obtained show that Border Patrol connects locally owned and operated license plate readers bought through Stonegarden grants to its computer systems, vastly increasing the federal agency's surveillance network.

How many people have been caught up in the Border Patrol's dragnet is unknown. One former Border Patrol agent who worked on the license plate reader pattern detection program in California said the program had an 85% success rate of discovering contraband once he learned to identify patterns that looked suspicious. But another former official in a different Border Patrol sector said he was unaware of successful interdictions based solely on license plate patterns.

In Trump's second term, Border Patrol has extended its reach and power as border crossings have slowed to historic lows and freed up agents for operations in the heartland. [Border Patrol Sector Chief Gregory Bovino](#), for example, was tapped to direct hundreds of agents from multiple DHS agencies in the administration's immigration sweeps across Los Angeles, more than 150 miles (241 kilometers) from his office in El Centro, California. Bovino later was elevated to lead the aggressive immigration crackdown in Chicago. Numerous Border Patrol officials have also been tapped to replace ICE leadership.

The result has been more encounters between the agency and the general public than ever before.

"We took Alek's case because it was a clear-cut example of an unconstitutional traffic stop," said Christie Hebert, who works at the nonprofit public interest law firm Institute for Justice and represents Schott. "What we found was something much larger — a system of mass surveillance that threatens people's freedom of movement."

AP found numerous other examples similar to what Schott and the delivery driver experienced in reviewing court records in border communities and along known smuggling routes in Texas and California. Several police reports and court records the AP examined cite "suspicious" travel patterns or vague tipoffs from the Border Patrol or other unnamed law enforcement agencies. In another federal court document filed in California, a Border Patrol agent acknowledged "conducting targeted analysis on vehicles exhibiting suspicious travel patterns" as the reason he singled out a Nissan Altima traveling near San Diego.

In cases reviewed by the AP, local law enforcement sometimes tried to conceal the role the Border Patrol plays in passing along intelligence. Babb, the deputy who stopped Schott, testified he typically uses the phrase "subsequent to prior knowledge" when describing whisper stops in his police reports to acknowledge that the tip came from another law enforcement agency without revealing too much in written documents he writes memorializing motorist encounters.

Once they pull over a vehicle deemed suspicious, officers often aggressively question drivers about their travels, their belongings, their jobs, how they know the passengers in the car, and much more, police records and bodyworn camera footage obtained by the AP show. One Texas officer demanded details from a man about where he met his current sexual partner. Often drivers, such as the one working for the South Carolina moving company, were arrested on suspicion of money laundering merely for carrying a few thousand dollars worth of cash, with no apparent connection to illegal activity. Prosecutors filed lawsuits to try to seize money or vehicles on the suspicion they were linked to trafficking.

Schott warns that for every success story touted by Border Patrol, there are far more innocent people who don't realize they've become ensnared in a technology-driven enforcement operation.

"I assume for every one person like me, who's actually standing up, there's a thousand people who just don't have the means or the time or, you know, they just leave frustrated and angry. They don't have the ability to move forward and hold anyone accountable," Schott said. "I think there's thousands of people getting treated this way."

Tau reported from Washington, Laredo, San Antonio, Kingsville and Victoria, Texas. Burke reported from San Francisco. AP writers Aaron Kessler in Washington, Jim Vertuno in San Antonio, AP video producer Serginho Roosblad in Bisbee, Arizona, and AP photographers Ross D. Franklin in Phoenix and David Goldman in Houston contributed reporting. Ismael M. Belkoura in Washington also contributed.

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